

Metering amendments that would pre-empt Digest G

Drawn from Section G of the Digest of Principles — Clause 5.6 testing, defective and slow meters, check meters, and meter-reading disputes. · 6 September 2026

20 G PRINCIPLES	32 CASE-APPLICATIONS	8 LITIGATION CLUSTERS	9 CODE CHANGES	5.6 PRINCIPAL CLAUSE
---------------------------------------	--	---	--------------------------------------	--

Section G is not twenty separate metering problems. It is **one drafting failure in Clause 5.6**, with satellite gaps in Clauses 5.8, 5.9, 8.1(vii) and 6.5. The Allahabad High Court has been writing the missing forks for twenty years. The Code should absorb those forks so the next inspection cannot be run down the wrong track.

Clause 5.6 is still headed *Defective Meters*, but 5.6(a) lets the licensee test *any meter*. 5.6(b) is consumer-request testing. 5.6(c)(ii) is a three-month slow/fast adjustment. 5.6(c)(iii) is a venue option. 5.6(d) is seven-day laboratory notice. 5.6(e) is a 7–15 day check meter. Clause 5.9(b)(ii) then jumps the same facts into sections 126 and 138 of the Act. Clause 8.1(vii) says a tampered meter is to be tested “in accordance with clause 5.6”. That is five regimes in one clause, with no election and no definition of “independent laboratory”. Almost every G card is a court filling one of those blanks.

1. How the G cards cluster
2. The amendment that does most of the work — new Clause 5.5A
3. Define “independent laboratory” and ban the manufacturer
4. Prescribe the *Amrawati Devi* notice as Form 5.6-A
5. Chain of custody and MRI
6. Check meters — say what they are for
7. Three-month cap as a hard stop
8. Metered release
9. Routing table so 5.6 and 6.5 stop colliding
10. What this would have done to the G docket
11. Two items not to force into Clause 5.6

1. How the G cards cluster eight failure modes, not twenty doctrines

Cluster	Digest G principles	What the Code never says
Wrong fork	Defective meter is not per se theft; slow working is not theft; slow-meter recovery bars a parallel s.135 case	One inspection can be billed as 5.6(c)(ii) and assessed as 8.1 / s.126 and prosecuted as s.135
Who may test	Manufacturer's laboratory is not independent (<i>Modern Rice Mill, Venus Stone Crushing, Rituraj</i>)	"Independent laboratory" is undefined
How testing is done	Seven-day notice (SLP-final); venue option in bold capitals; consumer present; MRI; laboratory report before the theft bill	5.6(d) and 5.6(c)(iii) exist, but there is no prescribed notice, no MRI duty, no chain of custody
When 5.6(c)(iii) applies	Independent-lab option only if the finding rests on a test report, not on patent visible tampering (<i>Santosh Preservation</i>)	The clause is silent; licensees still argue "5.6 is only for defective meters, not tampered meters"
Check meters	No bill on a check meter; 7–15 day clock is mandatory; outdoor / substation meters must be looked at; destroyed meter is the only exception	5.6(e) lets a check meter <i>replace</i> the main meter after a test; it never says a check meter cannot <i>raise</i> a demand
Quantum	Slow / fast difference only three months (<i>Madhuvan Properties</i>)	MRI is used to back-cast years
Forum	Exhaust 5.6 then Electrical Inspector before writ; reading disputes go to Clause 6.5	No routing table, so the same bill is sometimes a 5.6 case and sometimes a 6.5 case
Release	No meterless connection (s.55 — KESCO)	The Code does not say it

The two four-case lines on exhausting Clause 5.6, or going to Clause 6.5, are judicial case-management. A Code amendment will not stop writs. A routing table plus a speaking classification at inspection will stop the underlying illegal bill.

2. New Clause 5.5A — classify the finding before anyone bills the fork

Insert a classification clause immediately before 5.6, and force a single tick on the checking report. Everything else implements that fork. Also rename Clause 5.6 from "Defective Meters" to "**Testing of meters for accuracy**", so the heading can no longer be used to confine 5.6(a). The Court has already said the heading is not an aid to construction; the Code should stop inviting the argument.

DRAFT — CLAUSE 5.5A CLASSIFICATION OF A METER FINDING

(a) On every inspection, removal or MRI download, the checking report shall record **one, and only one**, of the following:

1. **Accuracy / slow / fast.** Proceed only under Clause 5.6. No assessment under section 126, no proceeding under Clause 8.1, and no first information report.
2. **Stopped, burnt, missing or destroyed, with no consumer fault recorded.** Proceed only under Clauses 5.8 and 5.9. Not theft.
3. **Patent visible interference** (cut phase wires, broken seals with open access to the measuring element, bypass, or a foreign device visible without opening the meter). Proceed under Clause 8.1 and sections 126–135. The Clause 5.6(c)(iii) venue option is not a condition of validity. MRI, photograph and sealing certificate remain mandatory.
4. **Latent or suspected interference** (seal inconsistency, MRI flag, slow running with no visible cause, or a recorded "possibility of theft"). No assessment and no first information report until Clause 5.6 laboratory testing is completed. A later Clause 8.1 assessment is permitted only if that test finds consumer-caused tampering.

(b) **Election.** If the licensee has raised and recovered a Clause 5.6(c)(ii) slow-meter charge on an inspection, it shall not prosecute or assess theft on that inspection. If it elects Clause 8.1, it shall not also levy Clause 5.6(c)(ii) on the same units.

PRE-EMPTS Krishna Kumar Bhargava (SCJ-189) · Kamakhya Steels (SCJ-315) · Saurabh Agrawal (SCJ-114) · the licensee's losing argument in Mohd. Sagir / Modern Rice Mill that "5.6 does not apply to tampered meters"

3. Define “independent laboratory” — and ban the manufacturer

Add to the definitions, and repeat in Clause 5.6. Aligns with the CEA metering regulations and the Electricity (Rights of Consumers) Rules, 2020. The “judge in his own cause” holding should not have to be re-litigated every time a Secure meter goes back to Secure.

DRAFT — DEFINITION

Independent laboratory means a laboratory accredited by NABL for the relevant meter class, **not** the manufacturer of the meter under test and **not** a laboratory in which that manufacturer has a financial interest. The licensee shall publish the approved list, with test charges, on its website and shall supply it with every testing notice.

PRE-EMPTS meter-manufacturer-testing-not-independent — Modern Rice Mill (SCJ-059), Venus Stone Crushing (SCJ-071), Rituraj (SCJ-161)

4. Prescribe the Amrawati Devi notice as Form 5.6-A

Clause 5.6(c)(iii) already requires the consumer’s agreement on venue. It does not require the licensee to **tell** the consumer the options exist. That is why *Amrawati Devi* (SLP dismissed 3 August 2009) had to invent a bold-capitals notice, and why *Rituraj* and *Vimla Tiwari* keep repeating it.

Add **Form 5.6-A** as a mandatory annexure to every sealing or testing notice:

- three options in bold capitals — licensee’s NABL laboratory / named independent NABL laboratory from the published list / Electrical Inspector;
- list and charges attached;
- testing date, not less than **seven days** out (Clause 5.6(d)(i), now SLP-final);
- “I choose ___ / I refuse / I was absent”;
- “option once exercised cannot be changed”;
- “if you do not return this form in seven days, testing will proceed at the licensee’s NABL laboratory, without prejudice to your right to be present.”

Default on silence is the piece *Amrawati Devi* left open. Without a default, every absent consumer generates a writ. With a default, the test is still valid if the form was served.

Carve-out, taken from *Santosh Preservation* (SCJ-064): Form 5.6-A is **not** required where the checking report records patent visible interference under Clause 5.5A(a)(iii). It **is** required for 5.5A(a)(i) and (iv).

PRE-EMPTS meter-testing-venue-option-must-be-offered-before-sealing · mandatory-pretesting-notice-final-by-slp-dismissal · clause-5.6d-meter-testing-procedure-mandatory-for-theft-finding

5. Chain of custody and MRI the Venus / Saurabh gap

Clause 5.6 is silent on what happens between removal and the laboratory. *Venus Stone Crushing* (SCJ-071) had to hold that after the meter leaves the consumer, the licensee must prove the later finding is not an intervening cause. *Saurabh Agrawal* had a “theft” FIR with the theft column struck through, no MRI, and the meter left at the police station.

DRAFT — ADD AS CLAUSE 5.6(D)(IV)–(VII)

1. Before removal of an electronic meter: MRI or data dump at site, with a copy handed over or e-mailed the same day.
2. The sealing certificate shall list every seal (box, body, terminal, optical port) and whether each was intact. A body-seal marked “tampered” with the box-seal intact is, without more, not a Clause 5.5A(a)(iii) patent case.
3. Photographs of the meter in situ, serial number readable. Sealed bag, joint signature or “refused”, unbroken until the laboratory.
4. After removal, the licensee bears the burden that any defect or tamper finding arose before removal.
5. A theft or unauthorised-use finding that depends on the condition of an electronic meter shall not be issued unless the MRI and the laboratory report are supplied with the provisional bill. Section 126(3) objections cannot be insisted on until that report is provided.

6. Check meters — say what they are for

This is the sharpest internal contradiction in Section G.

Gautam Motors (SCJ-202)

No provision to bill on a check meter. Demand set aside on that admission.

Mohit Paper (SCJ-060)

Exception if the consumer meter is physically gone, and the outside meter was reliably kept.

Parmarth Steels (SCJ-164)

Outdoor check meter and substation meter, if they tally, must be considered against a theft inference.

Kamakhya Steels (SCJ-315)

Check-meter unit difference is not theft units. Slow working is not theft.

Akriti Food (SCJ-430)

Clause 5.6(e) 7–15 day clock is mandatory. An order four days after installation cannot stand. (Not tagged in Digest G; same clause.)

Krown Bakers (SCJ-058)

Check-meter procedure on consumer request. Silence on a known slow-meter finding forfeits the later 5.6 objection.

DRAFT — REWRITE CLAUSE 5.6(E)

- (i) A check meter is a **testing instrument**, not a billing meter, except as in (ii) and (iii).
- (ii) **Consumer-dispute path.** Install in series or parallel within seven days of request. Record readings only after 7–15 days. If beyond permissible error and not disputed, the check meter becomes the billing meter and only the previous three months are adjusted. If disputed, the Clause 5.6(c) laboratory path applies. No speaking order before day seven.
- (iii) **Impossibility path.** If the billing meter is destroyed, stolen or otherwise incapable of a reading, the licensee may bill from a check, outdoor or substation meter that was already under seal, with the consumer's knowledge, and that has itself been tested. (The *Kusmaul / Mohit Paper* exception, now in the Code instead of a maxim.)
- (iv) A check-meter difference shall not be charged as section 126 or section 135 units. If the check meter and the substation meter tally with the billing meter, that fact shall be recorded and is relevant against a theft finding.

7. Three-month cap as a hard stop

Madhuvan Properties (SCJ-203): MRI said 50 per cent slow; demand for four years. Clause 5.6(c)(ii) already says “previous three months”. Licensees ignore it because MRI looks like a longer window.

DRAFT — EXPLANATION UNDER 5.6(C)(II) AND 5.6(E)

The three-month adjustment in Clauses 5.6(c)(ii) and 5.6(e) is a **maximum**. MRI, load-survey or billing history shall not enlarge it. A longer period is available only under section 126 or section 135 after a Clause 5.5A(a)(iii) finding, or a completed Clause 5.5A(a)(iv) finding, at the statutory rate.

8. Metered release, and consumer-purchased meters

KESCO (SCJ-1265) is section 55 of the Act, not really Clause 5.6, but it sits in Digest G because the Code never says it. Add to Chapter 4 or 5:

DRAFT

No connection shall be released, even provisionally, without a tested meter in circuit. “Meters not in store” is not a defence. If the licensee’s meter is unavailable, the consumer’s right under the proviso to section 55(1) to install a purchased meter shall be offered in writing the same day. Existing Clause 7.7.2 damages continue to apply.

PRE-EMPTS [connection-must-be-released-with-a-meter \(SCJ-1265\)](#)

9. A routing table, so 5.6 and 6.5 stop colliding

Section G has two four-case lines that look as if they contradict each other: meter *accuracy* must exhaust Clause 5.6, then the Electrical Inspector, then writ; meter *reading* / *MRI mismatch* / *billed units* go to a Clause 6.5 speaking order, then CGRF. They are different disputes. Put a note under both clauses.

Dispute	First step	Then
Accuracy, slow / fast, stoppage, seal, laboratory report	Clause 5.6 (Form 5.6-A)	Electrical Inspector if still disputed. CGRF does not re-test.
Billed units versus MRI or office reading, no accuracy challenge	Clause 6.5 speaking order after producing MRI	CGRF / Ombudsman
Check meter versus main meter	Clause 5.6(e) first — not a writ on whether laboratory testing was needed	Clause 6.5 if only quantum remains

Krown Bakers (a consumer who never requested a test cannot later plead 5.6 non-compliance) should be an explanation under 5.6(b): the **consumer-request** path is request-triggered; the **licensee-initiated** path under 5.6(a) still carries 5.6(d) and Form 5.6-A. That is the Krown / Amrawati tension, currently unresolved in the text.

10. What this would have done to the G docket

If the Code had said...	These cards largely disappear
5.5A fork and election	Defective-not-theft; slow-not-theft; slow-meter versus parallel s.135
NABL plus manufacturer ban	Manufacturer-testing-not-independent (three cases — the lead G line)
Form 5.6-A, seven-day notice, default	Venue-option; mandatory pre-testing notice; 5.6(d) theft-testing
MRI, custody, laboratory report with the bill	5.6 before missing-meter assessment; 8.1(vii) <i>Shamsul Qamar</i> ; <i>Saurabh Agrawal</i>
Check-meter rules (ii)–(iv)	No-billing-on-check-meter; impossibility exception; <i>Parmarth</i> ; <i>Kamakhyia</i> ; <i>Akriti</i> clock
Hard three-month cap	<i>Madhuvan</i> four-year MRI demand
Section 55 release line	Meterless KESCO connection
5.6 versus 6.5 table	The two four-case writ-relegation clusters shrink to true residual writs

What remains is genuine fact-finding: was the seal in fact broken, is the MRI authentic, did the consumer cause the burn. The Code cannot pre-empt those. It can stop the licensee from reaching an assessment, a citation or an FIR *before* the procedure the Court has already held is mandatory.

11. Two items not to force into Clause 5.6

Clause 4.15 — HT independent access

Atul Industrial (SCJ-670) is a siting rule, not a testing rule. Leave it. If it is touched at all, a one-line note that an Executive Engineer's direction under 4.15(a)–(b) is intra vires, and that obstruction is a Clause 6.5 / CGRF fact dispute, is enough.

Prepayment meters — Clause 4.20(l)

Dev Prayag (SCJ-053): section 47(5) already works once meters exist. The dispute is operational unavailability for HT. A yearly UPERC-notified list of categories for which prepayment meters are actually on offer would stop the “I am willing, therefore no security” writ. That is a 4.20 note, not a 5.6 rewrite.

Source: Digest of Principles, Section G (Metering), generated from principle_tags in the lean per-case records. Clause 5.6 text as quoted in *Mohd. Sagir* and *Amrawati Devi* (compilation of 17 July 2026). Companion to Principles_Digest_categorised_2026-09-06.pdf.